

PURCHASE ORDER

Supplier	JUNAID SANITARY & ELECTRICAL MAT TRDG LLC	Doc No	SPC/PO/26/924
Address	United Arab Emirates	Doc Date	18/06/2026
Phone		Ref No	SPC/IPR/25/0052,053,050
Email	sales@junaid.ae	Ref Date	18/06/2026
TRN	100225006400003	Project	1061 CENTRAL BUSINESS DISTRICT PHASE 1 BLOCK F
Supplier Contact	MR.MUZAIN/ 0556927029	Project Location	Muwaileh Commercial - Sharjah
Scope of Work	SUPPLY OF UPVC PIPE AND FITTINGS, BRAND: COSMOPLAST		

SI	Code	Description	Unit	Qty	Rate	Disc %	Disc Rate	Net Amount
1	DRFTPU0100	SOCKET, UPVC,GRAY, 82MM <i>SOCKET UPVC 82MM RR GREY COSMOPLAST</i>	Nos	82.00	6.73	3%	6.53	535.30
2	DRFTPU0103	SOCKET, UPVC,GRAY, 110MM <i>SOCKET UPVC 110MM RR GREY COSMOPLAST</i>	Nos	75.00	8.96	3%	8.69	651.84
3	DRFTPU0111	SOCKET, UPVC,GRAY, 160MM <i>SOCKET UPVC 160MM RR GREY COSMOPLAST</i>	Nos	190.00	23.93	3%	23.21	4,410.30
4	DRFTUA0502	SOCKET, UPVC, GRAY 200MM <i>SOCKET UPVC 200MM RR GREY COSMOPLAST</i>	Nos	10.00	48.50	3%	47.05	470.45
5	PLAA0212	UPVC PIPE 82MM <i>PIPE UPVC 82MMX5.8M RR GREY COSMOPLAST</i>	Length	203.00	69.19	3%	67.11	13,624.20
6	PLAA0213	UPVC PIPE 110MM <i>PIPE UPVC 110MMX5.8M RR GREY COSMOPLAST</i>	Meter	120.00	100.05	3%	97.05	11,645.82
7	PLAA0214	UPVC PIPE 160MM <i>PIPE UPVC 160MMX5.8M RR GREY COSMOPLAST</i>	Length	429.00	148.80	3%	144.34	61,920.14
8	PLAA0215	UPVC PIPE 200MM <i>PIPE UPVC 200MMX5.8M RR GREY COSMOPLAST</i>	Length	63.00	280.99	3%	272.56	17,171.30
9	PLSPRR0055	SINGEL Y UPVC 50MM <i>YEE UPVC 56MM SS GREY COSMOPLAST</i>	Nos	58.00	4.13	3%	4.01	232.35
10	PLSPRR0056	SINGEL Y UPVC 82MM <i>YEE UPVC 82MM RR GREY COSMOPLAST</i>	Nos	10.00	17.33	3%	16.81	168.10

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11	PLSPRR0057	SINGEL Y UPVC 110MM <i>YEE UPVC 110MM RR GREY COSMOPLAST</i>	Nos	42.00	23.30	3%	22.60	949.24
12	PLSPRR0058	SINGEL Y UPVC 160MM <i>YEE UPVC 160MM RR GREY COSMOPLAST</i>	Nos	160.00	69.29	3%	67.21	10,753.81
13	PLSPRR0059	SINGEL Y UPVC 200MM <i>YEE UPVC 200MM RR GREY COSMOPLAST</i>	Nos	12.00	103.93	3%	100.81	1,209.75
14	DRFTUA0550	Y- TEE REDUCER BRANCH UPVC 200mm X 110mm <i>REDUCING YEE UPVC 200X110MM RR GREY COSMOPLAST</i>	Nos	22.00	76.21	3%	73.92	1,626.32
15	DRFTPU0157	REDUCER YEE, UPVC , 160MM X 110MM <i>REDUCING YEE UPVC 160X110MM RR GREY COSMOPLAST</i>	Nos	154.00	41.57	3%	40.32	6,209.73
16	DRFTPU0164	REDUCER YEE, UPVC , 110MM X 82MM <i>REDUCING YEE UPVC 110X82MM RR GREY COSMOPLAST</i>	Nos	43.00	21.49	3%	20.85	896.35
17	DRFTUA0759	ELBOW 45DEG UPVC 32MM GREY ASTMD 2466 SCH40 SOLVENT WELDED <i>ELBOW UPVC 36MMX45D SS GREY COSMOPLAST</i>	Nos	15.00	1.13	3%	1.10	16.44
18	DRFTUA0723	ELBOW 45DEG UPVC 2" <i>ELBOW UPVC 56MMX45D SS GREY COSMOPLAST</i>	Nos	135.00	1.84	3%	1.78	240.95
19	DRFTUA0595	ELBOW 45DEG UPVC 82MM" <i>ELBOW UPVC 82MMX45D RR GREY COSMOPLAST</i>	Nos	42.00	7.63	3%	7.40	310.85
20	DRFTPU0096	ELBOW 45DEG UPVC 110MM BS EN1329-1 <i>ELBOW UPVC 110MMX45D RR GREY COSMOPLAST</i>	Nos	381.00	10.40	3%	10.09	3,843.53

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SI	Code	Description	Unit	Qty	Rate	Disc %	Disc Rate	Net Amount
21	DRFTPU0106	ELBOW, 45DEG, UPVC,160 MM	Nos	116.00	31.19	3%	30.25	3,509.50
		<i>ELBOW UPVC 160MMX45D RR GREY COSMOPLAST</i>						
22	DRFTUA0720	ELBOW 45DEG UPVC 200MM BS EN1401	Nos	1.00	49.89	3%	48.39	48.39
		<i>ELBOW UPVC 200MMX45D RR GREY COSMOPLAST</i>						
23	DRFTUA0433	ELBOW 90DEG UPVC BS EN 1329-1, 2"	Nos	16.00	2.26	3%	2.19	35.08
		<i>ELBOW UPVC 56MMX90D SS GREY COSMOPLAST</i>						
24	DRFTPU0056	ELBOW 90DEG UPVC 82MM BS EN1401	Nos	98.00	8.96	3%	8.69	851.74
		<i>ELBOW UPVC 82MMX90D RR GREY COSMOPLAST</i>						
25	DRFTUA0738	EQUAL TEE 2" UPVC	Nos	8.00	4.29	3%	4.16	33.29
		<i>TEE UPVC 56MM SS GREY COSMOPLAST</i>						
26	PLFTRQ0025	EQUAL Y-TEE BRANCH 82MM	Nos	30.00	13.86	3%	13.44	403.33
		<i>TEE UPVC 82MM RR GREY COSMOPLAST</i>						
27	DRFTUA0747	UPVC REDUCING TEE 110X110X50	Nos	11.00	9.73	3%	9.44	103.82
		<i>REDUCING TEE UPVC 110X56MM SS GREY COSMOPLAST</i>						
28	DRFTUU0043	REDUCER UPVC 200X 160MM	Nos	3.00	34.64	3%	33.60	100.80
		<i>REDUCER UPVC 200X160MM RR GREY COSMOPLAST</i>						
29	DRFTUA0740	ACCESS PLUG UPVC 8"	Nos	8.00	31.14	3%	30.21	241.65
		<i>ACCESS PLUG UPVC 200MM SS GREY COSMOPLAST</i>						
30	DRFTUA0741	ACCESS PLUG UPVC 6"	Nos	94.00	16.36	3%	15.87	1,491.70
		<i>ACCESS PLUG UPVC 160MM SS GREY COSMOPLAST</i>						

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SI	Code	Description	Unit	Qty	Rate	Disc %	Disc Rate	Net Amount
31	DRFTHA0222	ACCESS PLUG 110MM DIA. UPVC BSEN 1329 <i>ACCESS PLUG 110MM DIA SS UPVC GREY.</i>	Nos	40.00	9.34	3%	9.06	362.39
32	DRFTUA0743	ACCESS PLUG UPVC 2" <i>ACCESS PLUG UPVC 56MM SS GREY COSMOPLAST</i>	Nos	60.00	3.54	3%	3.43	206.03
33	DRFTUA0747	UPVC REDUCING TEE 110X110X50 <i>REDUCING TEE UPVC 110X56MM SS GREY COSMOPLAST</i>	Nos	400.00	9.73	3%	9.44	3,775.24
34	DRFTPU0159	REDUCER YEE, UPVC , 200MM X 160MM <i>REDUCING YEE UPVC 200X160MM RR GREY COSMOPLAST</i>	Nos	9.00	90.07	3%	87.37	786.31
35	DRFTPU0047	YEE BRANCH UPVC 160 X 110MM BS EN1401 <i>UPVC REDUCER YEE 6"X4" RR GREY.</i>	Nos	20.00	41.57	3%	40.32	806.46
36	DRFTPU0047	YEE BRANCH UPVC 160 X 110MM BS EN1401 <i>UPVC REDUCER YEE 6"X4" RR GREY.</i>	Nos	126.00	41.57	3%	40.32	5,080.69
37	DRFTPU0095	YEE BRANCH UPVC 110 X 56MM BS EN1329-1 <i>REDUCING YEE UPVC 110X56MM SS GREY COSMOPLAST</i>	Nos	10.00	9.57	3%	9.28	92.83
38	DRFTPU0190	REDUCER UPVC , 110MM X 56MM <i>REDUCER BUSH RR UPVC , 110MM X 56MM GREY.</i>	Nos	20.00	7.63	3%	7.40	148.02
39	DRFTPU0191	REDUCER UPVC , 110MM X 82MM <i>REDUCER BUSH RR UPVC , 110MM X 82MM GREY,</i>	Nos	126.00	10.04	3%	9.74	1,227.09
40	DRFTPU0059	SOCKET UPVC 82MM BS EN1401 <i>SOCKET UPVC RR 82MM GREY BS EN1401</i>	Nos	50.00	6.73	3%	6.53	326.41

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41	DRFTPU0049	SOCKET UPVC 160MM BS EN1401	Nos	50.00	23.93	3%	23.21	1,160.61
42	DRFTPU0182	SOCKET RR UPVC 160MM GREY BS EN1401 YEE BRANCH UPVC 82MM GREY	Nos	10.00	17.33	3%	16.81	168.10
43	DRFTUA0745	YEE RR BRANCH UPVC 82MM GREY YEE BRANCH UPVC 4"	Nos	160.00	23.30	3%	22.60	3,616.16
44	DRFTUA0412	YEE RR BRANCH UPVC 4" GREY END CAP UPVC BS EN 1329-1 GREY 4"	Nos	100.00	2.73	3%	2.65	264.81
45	DRFTUA0009	END CAP SS UPVC BS EN 1329-1 GREY 4"	Nos	23.00	54.21	3%	52.58	1,209.43
46	DRFTUA0692	SOCKET UPVC CLASS E HP BS 3505 GREY 160 MM PIPE UPVC HP 25MM	Length	35.00	16.56	3%	16.06	562.21
		UPVC HP PIPE 3/4X6MTR CL-E						

AED One Hundred Seventy One Thousand Six Hundred Seventy Three and Eighty Fils Only.

Grand Total (AED)	168,555.50
Addition (AED)	0.00
Discount (AED)	5,056.64
Gross Amount (AED)	163,498.86
VAT Amount (AED)	8,174.94
Net Amount (AED)	171,673.80

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Terms & Conditions

Payment Terms	: 90 DAYS PDC AFTER MATERIAL DELIVERY AND SUBMISSION OF DOCUMENTS
Delivery terms	: TO BE DELIVER TO OUR SITE AT SHARJAH
Delivery Location	: 1061 - CBD
Contact Name	: MR.NIRESH
Contact Mobile No	: 0509757605
Warranty	: AS PER THE PROJECT SPECIFICATIONS / APPROVED MATERIAL SUBMITTAL
Other Terms	: 1. THE ALL UPVC HP PIPE AND FITTINGS DELIVER SHALL BE AS PER APPROVED MATERIAL SUBMITTAL & INCOPORATING THE ALL CONSULTANT COMMENTS. 2. COO CERTIFICATE & TEST CERTIFICATE MUST BE PROVIDED UPON MATERIAL DELIVERY.
Additional Material Description	:

This Purchase Order(PO) is subject to the attached Spectrum cube conditions of contract for the purchase and supply of Goods.

Vimal kumar

Prepared By
Procurement

Approved By
Procurement Manager

Approved By
Project Control

6/19/2026 3:56:43 PM

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"This document is computer generated and does not require any signature or the Company's stamp in order to be considered valid."

Issue No / Rev. No.2.0
Issue Date: 01/07/2022
Ref No. SPC-WI-PO-033

1. DEFINITIONS

"Affiliate Company" means in relation to the Purchaser, on or after entry into the Contract, any subsidiary of the Purchaser, or any holding company controlling the Purchaser and any other subsidiary of that holding company.

"Conditions" means the terms and conditions of contract for purchase of goods stated herein.

"Contract" means the Purchase Order together with the Conditions and schedules which shall constitute the entire contractual agreement between the Purchaser and Vendor.

"Defects Liability Period" means the period for notifying defects as stated in the Main Contract or as otherwise notified to the Vendor by the Purchaser.

"Delivery Address" means the delivery address set out in the Purchaser Order.

"Delivery Date" means the date specified by the Purchaser for the delivery of the Goods in the Purchase Order.

"Goods" means the plant, equipment, materials or other tangible goods or things (including services) to be supplied as specified in the Purchase Order.

"Main Contract" means any contract between the Purchaser and a third party, the purpose of which the Goods are required.

"Payment Terms" means the terms of payment as set out in the Purchase Order.

"Purchaser" means the person, firm or corporation placing an order for the Goods and shall where appropriate also mean such person, firm or corporation for whom the Goods are being ordered.

"Purchase Order" means the Purchaser's order for Goods as set out in the purchase order form.

"Vendor" means the person, firm or corporation with whom an order for the Goods is placed.

2. TERMS OF CONTRACT

2.1. The terms of the Contract (including these Conditions) are to the exclusion of any other terms that the Vendor seeks to impose or incorporate, or which are implied by trade, custom, practice or course of dealing.

2.2. The Purchase Order constitutes an offer by the Purchaser to purchase the Goods in accordance with the Contract, and the Purchase Order shall be deemed accepted on the earlier of:

- (i) the Vendor issuing a written acceptance of the Purchase Order; or
- (ii) the Vendor doing any act consistent with fulfilling the Purchase Order, at which point the Contract shall come into existence.

2.3. Except as set out in these Conditions, no changes shall be made to the Contract, including the introduction of any additional terms and conditions, unless such changes are otherwise agreed to by the Purchaser in writing.

2.4. No communication from the Purchaser's servants or agents shall be of contractual effect or relied on as a representation, condition or warranty unless confirmed in writing by the Purchaser and all the Vendors conditions of sale however communicated are hereby expressly excluded unless specifically and expressly incorporated.

2.5. The Vendor waives any right it might otherwise have to rely on any term endorsed upon, delivered with or contained in any documents of the Vendor that is inconsistent with the Contract.

3. STANDARD OF GOODS

3.1. The Vendor shall ensure that the Goods shall:

- (i) correspond with their description and any application specification; and
- (ii) be of satisfactory quality and fit for purpose (including for the purposes of the Main Contract).

4. VENDOR'S DRAWINGS AND MANUALS

4.1. The Vendor shall without additional cost to the Purchaser, supply all required drawings, whether needed for information only, approval or final record, operation instruction, maintenance manuals, fabrication reports, test certificates or other such documents at the times and in the number of copies as specified in the Purchase Order or any attachments thereto, to a standard and detail necessary to ensure the proper installation, operation, maintenance and repair of the goods. By approving any of the Vendor's drawings and details as herein before mentioned, the Purchaser shall in no way be deemed to have assumed any responsibility for any design criteria or the accuracy of any design detail.

5. COMPLIANCE WITH LAWS

5.1. In performing its obligations under the Contract and in relation to the Goods, the Vendor will comply with all applicable government codes, laws and regulations or customs in the territory in which the Goods are to be used. Before delivery of the Goods, the Vendor will have the Goods stamped with whatever markings are so required.

5.2. The Vendor shall ensure that at all times it has and maintains all the licences, permissions, authorisations, consents and permits that it needs to carry out its obligations under the Contract and in respect of the supply of the Goods to the Purchaser.

6. VENDOR WARRANTIES

6.1. All Goods furnished by the Vendor shall be in accordance with the Purchaser's specification or instructions and shall be designed and manufactured to the highest standards and of the best quality incorporating first class workmanship and materials throughout.

6.2. The Vendor has been informed that the Goods are required for the purposes of the Main Contract and the Vendor confirms that he has full knowledge of and will comply in all applicable respects with the provisions of the Main Contract including but not limited to those relating to materials, guarantees, warranties and defects liability. The Purchaser shall supply the Vendor with a copy of any other such provisions upon request (other than details of the Purchaser's prices and rates).

6.3. Save as otherwise required by the provisions of these Conditions, the Vendor shall ensure that no act or omission in relation to the Vendors performance of the Contract shall constitute, cause or contribute to any breach by the Purchaser of the Main Contract. The Vendor shall assume and perform hereunder all the obligations and liabilities of the Purchaser under the Main Contract in relation to materials guarantees and defects liability for the Goods.

6.4. Notwithstanding any other obligations imposed hereunder, and as a minimum obligation, if any part of the Goods does not meet any required specification, or is found defective, or if any defect or fault occurs in any of the Goods whether due to design (if furnished by the Vendor), materials, workmanship, or operating characteristics of the Goods, any time within the Defects Liability Period, the Vendor shall at his own expense, promptly make such alteration, repairs and replacements as are necessary, so that the said part conforms to the specifications and fulfils the preceding guarantees to the Purchaser's satisfaction. If the fault or failure to function properly cannot be corrected, the faulty item shall be removed by or at the expense of the Vendor and/or the Vendor shall, without cost to the Purchaser, promptly furnish the satisfactory item which completely fulfils the specification and requirements of the Contract.

7. INDEMNITY

7.1. The Vendor shall indemnify the Purchaser and any Affiliate Company against all liabilities, costs, expenses, damages and losses (including liability under the Main Contract), which the Purchaser or any Affiliate Company may incur by reason of any breach of this Contract or of any applicable law or regulation by the Vendor.

7.2. The Vendor shall indemnify the Purchaser and any Affiliate Company against any loss, including but not limited to indirect and consequential losses, loss of profit, loss of reputation, penalties, damage or injury to persons or property arising as a result to defective workmanship, unsatisfactory quality of the Goods or failure to comply with the Purchaser's specifications and instructions or any claim for which the Purchaser or any Affiliate Company shall be held responsible at law.

7.3. If the Vendor, in performing the Contract, furnishes the services of himself, his agent or employee, the Vendor agrees to assume all liability with respect to the services of himself, his agent or employee whilst on the construction site or any other premises in relation to the Main Contract and/or the Contract, and to indemnify and hold the Purchaser and any Affiliate Company harmless from all claims, suits, actions and proceedings whatsoever which may be brought on account of injuries or damage to the Vendor, his agent or employee, or to other persons or property on account of the said services.

8. DELIVERY

8.1. It is an express condition that the stipulations as to the delivery time are of the essence of the Contract and the Vendor guarantees delivery of all the Goods at the places and at the times stated. If the Vendor delivers Goods after the Delivery Date, the Purchaser may reject the goods. The Purchaser may however, at no extra cost, defer the Delivery Date or the point of delivery by giving reasonable notice in writing to the Vendor.

8.2. Unless the Purchaser expressly instructs otherwise, the Vendor will deliver all goods to the Delivery Address. Unless expressly stated in the terms of this Contract, the Vendor assumes responsibility for all shipping and delivery charges including, without limitation, customs, duties, costs, taxes and insurance.

8.3. The Purchaser will hold any goods rejected under this Purchase Order at the Vendor's risk and expense, including storage charges, while awaiting the Vendor's shipping instructions. The Vendor will bear all return shipping charges. The Purchaser may, in its sole discretion, destroy or sell at a public or private sale any rejected Goods for which the Purchaser does not receive return shipping instructions within a reasonable period of time and the Purchaser may apply the proceeds of sale to any expenses it has incurred including, without limitation, storage charges.

9. INSPECTION OF GOODS AND PACKAGING

9.1. All Goods and packaging are to be made available for inspection at all reasonable hours and full facilities are to be afforded to the Purchaser or its agents for such purpose at no extra cost to the Purchaser. The Vendor is to pay for and carry out such tests and supply such certificates in connection herewith as may be specified in the Contract or Main Contract.

9.2. By inspecting any of the Goods or packing, the Purchaser shall in no way be deemed to have assumed any responsibility for their accuracy or compliance with any laid down standard and the Vendor shall be considered to be an expert with regard to all rules and regulations relating specifically to such of the Goods as may be of an hazardous or unusual nature.

9.3. The Purchaser may reject any or all of the Goods which do not confirm to the applicable requirements. At the Purchaser's option, and in addition to any other remedy under this Contract or at law, the Purchaser may (a) return the non-conforming goods to the Vendor for a refund or credit; (b) require the Vendor to replace the non-conforming goods so they meet the applicable requirements. The Purchaser's payment to the Vendor for Goods prior to rejection of such Goods for non-conformance will not be deemed acceptance by the Purchaser.

10. UNAUTHORISED CHARGES

10.1. The Purchaser shall not accept any charges for preparation, packing, boxing, crating or any other charges applicable to the point of delivery, unless specifically provided for in the Contract.

10.2. In the case of Goods forwarded or shipped, unloaded or otherwise handled by the Purchaser's employees or agents, the costs thereof will be reimbursed to the Purchaser unless otherwise agreed.

11. PRICE

11.1. No variation in the Contract price will be accepted without the Purchaser's prior written approval. Invoices must be sent to the head office shown on the face of the Purchase Order. The Vendor will reimburse the Purchaser all costs and expenses incurred resulting from failure to comply with this clause.

11.2. The Purchaser reserves the right to deduct or set off from any monies due, or becoming due to the Vendor, any monies due from the Vendor to the Purchaser in respect of Goods supplied or rendered by the Purchaser on behalf of the Vendor in completing this contract including, but not limited to, as a result of defects in the Goods supplied or delays in supplying the Goods, and any other sums payable by the Vendor to the Purchaser in respect of Goods supplied or rendered by the Purchaser on behalf of the Vendor in completing this Contract and any other sums payable by the Vendor to the Purchaser hereunder or any amounts the Vendor owes the Purchaser or any Affiliate Company.

12. TITLE AND RISK

12.1 The title and risk in the Goods shall pass to the Purchaser on completion of delivery. Until completion of the delivery has taken place, title and risk shall remain with the Vendor.

13. PAYMENT

13.1 The Vendor's invoices will be paid according to the Payment Terms. Time in connection with payment will be calculated from the date of the Purchaser's receipt of the Goods. If documents require correction, the time of payment will be calculated from the date of receipt by the Purchaser of the Vendor's corrected documents. Notwithstanding the Payment Terms, the Purchaser is not obliged to make any payments to the Vendor until the Vendor has signed and returned a copy of these Conditions to the Purchaser.

14. TERMINATION

14.1. The Purchaser may terminate the Contract in whole or in part at any time, for any reason, by giving the Vendor five (5) days written notice. The Purchaser shall pay the Vendor for all goods delivered as at the date notice is served on the Vendor save that the Purchaser shall not be obliged to pay more than can be recovered in respect thereof under the Main Contract. The Purchaser will have no further payment obligation to the Vendor as a result of or in connection with any termination.

14.2. Notwithstanding clause 14.1, the Purchaser may terminate the Contract with immediate effect and without the incurrance of any penalty or other charge whatsoever by giving written notice to the Vendor if:

- (i) the Vendor is in breach of the Contract and such breach is not capable of remedy; or
- (ii) the Vendor is in breach of this Contract and such breach has not been remedied within five (5) days of the Purchaser giving the Vendor written notice requiring the same; or
- (iii) the Vendor takes any step or action in connection with its entering administration, provisional liquidation or any composition or arrangement with its creditors (other than in relation to a solvent restructuring), being wound up (whether voluntarily or by order of the court, unless for the purpose of a solvent restructuring), having a receiver appointed to any of its assets or ceasing to carry on business, or taking any step or action in connection with the Vendor being made bankrupt, entering any composition or arrangement with his creditors, having a receiver appointed to any of his assets, or ceasing to carry on business, or the Vendor suspends, or threatens to suspend, or ceases or threatens to cease to carry on all or a substantial part of its business;

or the Vendor's financial position deteriorates to such an extent that in the Purchaser opinion the Vendor's capability to adequately fulfil its obligations under the Contract has been placed in jeopardy; or

(iv) the Vendor assigns, transfers or sublets the Contract or any part thereof in contravention of clause 16 herein and in addition the Purchaser shall be at liberty to take possession of all plans, equipment, materials and any other documentation that is held by or on behalf of the Vendor.

14.3. Notwithstanding clause 14.1, the Purchaser may suspend or cancel the Contract in whole or in part by written notice to the Vendor. In the event of suspension or cancellation of the Contract the Purchaser shall make payment to the Vendor of all Goods delivered by the Vendor, prior to such cancellation, subject to the payment terms and clause 11 of these Conditions save that the Purchaser shall not be obliged to pay more than has been recovered in respect thereof under the Main Contract unless the cancellation results from a breach of the Main Contract by the Purchaser. In the event of suspension of the Main Contract for a period in excess of 180 days, either party may elect to cancel this Agreement by serving the other party with fourteen (14) days written notice.

15. PATENTS

15.1 The Vendor shall fully indemnify the Purchaser against any action, claim, demand, costs, charges or expenses arising from or incurred by reason of any infringement of any letters patent, registered design, or trade name by the use or sale of the Goods, and against all costs and damages which the Purchaser may incur in any action for such infringement, or for which the Purchaser may become liable in any such action. In the event of a claim being made, or action brought against the Purchaser, arising out of the matters referred to in this Clause, the Vendor shall be promptly notified thereof, and shall, at his own expense, conduct all negotiations for the settlement of the same and any litigation that may arise therefrom. The Purchaser may, at the request of the Vendor, afford all available assistance for any such purpose and shall be repaid any expense incurred in so doing by deduction from the Vendor's account.

16. ASSIGNMENT

16.1 Neither the Contract or any part thereof shall be assigned, transferred or sublet by the Vendor except by the prior written approval of the Purchaser.

17. SUBCONTRACTING

17.1 The Vendor may not subcontract any or all of its rights under the Contract without the prior written approval of the Purchaser. If the Purchaser approves any subcontracting, the Vendor shall remain responsible for all the acts and omissions of its subcontractors as if they were his own.

18. CONFIDENTIALITY

18.1. A party (receiving party) shall keep in strict confidence all confidential information concerning the disclosing party's business, its products and services which the receiving party may obtain. The receiving party shall only disclose such confidential information to those of its employees, agents and subcontractors who need to know it for the purpose of discharging the receiving party's obligations under the Contract, and shall ensure that such employees, agents and subcontractors comply with the obligations set out in this clause as though they were a party to the Contract. The receiving party may also disclose such of the disclosing party's confidential information as is required to be disclosed by law, any governmental or regulatory authority or by a court of competent jurisdiction.

18.2. The Vendor shall not, without the prior written approval of the Purchaser, publicize or otherwise disclose the name of the Purchaser or the destination or description of the goods or services supplied in connection with the Purchase Order and shall treat the terms and conditions and existence of the Contract as confidential.

19. ENTIRE AGREEMENT

19.1 The Contract constitutes the entire agreement between the Vendor and the Purchaser and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.

20. WAIVER

20.1 Except as set out in these Conditions, a waiver of any right or remedy is only effective if given in writing and shall not be deemed a waiver of any subsequent breach or default. A delay or failure to exercise, or the single or partial exercise of, any right or remedy shall not: waive that or any other right or remedy; or prevent or restrict the further exercise of that or any other right or remedy.

21. SEVERANCE

21.1 If any provision or part-provision of the Contract is or becomes invalid, illegal or unenforceable, it shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. If such modification is not possible, the relevant provision or part-provision shall be deemed deleted. Any modification to or deletion of a provision or part-provision under this clause shall not affect the validity and enforceability of the rest of the Contract.

22. NOTICES

22.1 Any notice or other communication given to a party under or in connection with the Contract shall be in writing, addressed to that party at its registered office (if it is a company) or its principal place of business (in any other case) or such other address as that party may have specified to the other party in writing in accordance with this clause, and shall be delivered personally, email, commercial courier,. A notice or other communication shall be deemed to have been received: if delivered personally, when left at the party's registered address, if delivered by commercial courier, on the date and at the time that the courier's delivery receipt is signed.

23. COMPLIANCE

23.1. Each of the Vendor and the Purchaser agrees not to pay, promise to pay, or authorise the payment of any money or anything of value, whether directly or indirectly, to any person (whether a government official or private individual) for the purpose of illegally or improperly obtaining any benefit including but not limited to the payment of any commission or fee in connection with the Contract or inducing any government official or to make a decision or to illegally or improperly assist in obtaining or retaining business, or to take any other improper action, in connection with the Contract or the sale of Goods, or to establish or maintain any undisclosed or unrecorded funds or assets or cause the making of any artificial entries in any books and records in connection with any Goods supplied under the Contract.

24. GOVERNING LAW

24.1 This agreement shall be governed by and construed in accordance with the laws of the Emirate of Dubai and UAE Federal Laws.

25. DISPUTES

25.1 Any dispute arising out of or in connection with the Contract, including any question regarding its existence, validity or termination, shall be subject to the exclusive jurisdiction of the Dubai Courts. The parties expressly submit to the exclusive jurisdiction of the Courts of Dubai and if, in breach of this clause, a party commences a proceeding in the courts of any other jurisdiction, including any other courts of the United Arab Emirates, it will fully indemnify the other party for all legal costs incurred in defending such proceedings.